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County of Santa Clara Registrar of Voters

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BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. ~~The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org~~. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

Time/Date Stamp

FILED
AUG 11 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy
4:50 p.m.

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Sunnyvale

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

Measure Letter G (if available – letters will be assigned after 5:00 p.m. on E-88)

Type of Arg yo g

☐ Primary Argument in Favor / Proponent

☒ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

App

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☒ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** G being submitted. I oppose this measure.

NO on G! California makes it *legal* but it's a *terrible* idea!

Purposely vague Measure G would allow "**design-build**" and "**best value**" to be used instead of competitive bidding for the design and construction of City buildings. Sunnyvale currently has one bid for design - another bid for the construction. Low bid wins.

- "**Design-build**" makes designer and builder the same, incentivizing expensive design. The independent designer who normally protects the public by flagging problems, preventing corner-cutting is gone. When the builder oversees themselves, taxpayers bear the risk.
- **Measure G** allows contracts awarded on *subjective* "**best value**" scoring instead of "**low-bid**". Los Angeles saw the consequences: Councilmember José Huizar pleaded guilty to accepting **$1.5 million** in bribes benefiting developers, involving **$Billions** in city projects because of "**best value**" procurement. The **Los Angeles District Attorney** warned *subjective* "**best value**" evaluations used in "**design-build**" can enable *favoritism*, undermining public trust.
- "**Design-build**" incentivizes contractors to "lowball" projects knowing "*unforeseen*" changes will increase costs - which taxpayers will pay. City Council members inexperienced with building construction go along with whatever the contractor tells them is "*unexpectedly*" needed.
- **Belmont Learning Center:** a Los Angeles Unified School District "design-build" project **doubled in cost**, rising from **$150 million to over $300 million**, one of the most expensive high schools in U.S. history. Environmental hazards were missed, oversight broke down; investigations found "**design-build**" contributed to the disaster.

Sunnyvale staff in a 2016 report acknowledged that "**design-build**" raises conflict-of-interest concerns. The developer claimed it "minimizes change orders", but that came from the contractor(!), who benefits from lack of competition.

More examples and discussion at:

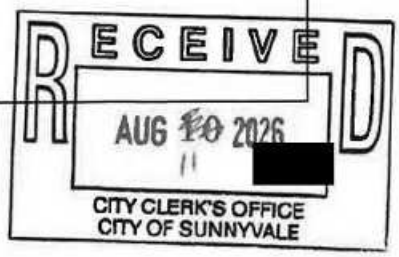
https://meetingthetwain.blogspot.com/2026/08/2026-against-sunnyvale-measure-g.html

Keep Sunnyvale's competitive system to protect residents!

If it ain't broke, don't fix it!

NO on Measure G.

W: 284



FILER / SIGNER ONLY

[redacted]

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

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[redacted]
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*** Required information.**

I am the **FILER** of the primary argument: ☒ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☒ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Michael S. Goldman

INDICATE IF ADDRESS IS: ☒ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

*** Address:** [redacted] Sunnyvale, CA 94087

*** Email Address:** [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☐ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☒ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☒ 1 / ☐ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Michael S. Goldman
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Former Sunnyvale City Council Member
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)